

DRAFT TOWN OF DRYDEN

LOCAL LAW NO. 1 FOR THE YEAR 2026

**A LOCAL LAW EXTENDING A MORATORIUM ON COMMERCIAL
CRYPTOCURRENCY MINING OPERATIONS AND DATA PROCESSING CENTERS**

Be it enacted by the Town Board of the Town of Dryden as follows:

Section 1. Enactment

The Town Board of the Town of Dryden does hereby extend for an additional two months a moratorium on Commercial Cryptocurrency Mining operations and Data Processing Centers in the Town of Dryden, originally enacted on July 31, 2024 by Local Law No. 2 of 2024.

Section 2. Authority and Purpose

This Local Law is enacted pursuant to the authority and provisions of Section 10 of the Municipal Home Rule Law of the State of New York, and all other powers and authority vested in the Town Board of the Town of Dryden to regulate and control land use and to protect the health, safety and welfare of its residents.

It is the purpose of this Local Law to provide the Town of Dryden a short period of additional time to address through planning and legislation, the promotion of the protection, order, conduct, safety health and well-being of the residents of the Town which are presented as heightened risks associated with Commercial Cryptocurrency Mining operations and Data Processing Centers. Further, it is the purpose of this Local Law to facilitate the adoption of land use and zoning regulations and laws to protect and enhance the Town's natural, historic, cultural and electrical resources.

Section 3. Extension of Moratorium

Section 6 of Local Law No. 2 of 2024, entitled “Term,” is hereby amended as follows:

Replace the phrase “eighteen (18)” with “twenty (20).”

All other sections, terms and conditions of Local Law No. 2 of 2024 shall otherwise remain in full force and effect until expiration of the term, as amended, or termination of the moratorium by legislative action of the Town Board.

Section 4. Severability

If any word, phrase, sentence, part, section, subsection, or other portion of this Local Law, or the application thereof to any person or to any circumstance, is adjudged or declared invalid or unenforceable by a court or other tribunal of competent jurisdiction, then, and in such event, such judgment or declaration shall be confined in its interpretation and operation only to the provision of this Local Law that is directly involved in the controversy in which such judgment or declaration

is rendered, and such judgment or declaration of invalidity or unenforceability shall not affect or impair the validity or enforceability of the remainder of this Local Law or the application hereof to any other persons or circumstances. If necessary as to such person or circumstances, such invalid or unenforceable provision shall be and be deemed severed herefrom, and the Town Board of the Town of Dryden hereby declares that it would have enacted this Local Law, or the remainder thereof, even if, as to particular provisions and persons or circumstances, a portion hereof is severed or declared invalid or unenforceable.

Section 5. Superseding Intent and Effect

It is the specific intent of the Town Board that this Local Law shall supersede any inconsistent provisions of Sections 267, 267-a, 267-b, 274-a, 274-b and 276 of the Town Law of the State of New York, as well as all other inconsistent provisions of local ordinances, local laws, or local resolutions or policies of the Town of Dryden, including but not limited to provisions of the aforementioned state and local laws, ordinances, resolutions or policies that require the approval, or affect a default approval of land use applications within certain statutory time periods.

Section 6. Effective Date

This Local Law shall take effect immediately upon filing with the New York Department of State in accordance with Section 27 of the Municipal Home Rule Law.